# SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

**CASE NO: CS (OS) No. 890 of 2008 (YEAR: 2009)**

***CORAM: MARKANDEY KATJU, ASOK KUMAR GANGULY***

**Bajaj Auto Ltd.**
**... Appellant(s) / Petitioner(s)**
***Versus***
**TVS Motor Company Ltd.**
**... Respondent(s)**

| | |
|---|---|
| **Acts Referred:** | Patents Act, 1970 |
| **Sections:** | Section 108 Patents Act |

## JUDICIAL HEADNOTE & SUMMARY

Directed trial courts to hear patent infringement suits on a day-to-day basis and resolve matters within four months without lingering on interlocutory stages.

## RATIO DECIDENDI

The Court held that: Directed trial courts to hear patent infringement suits on a day-to-day basis and resolve matters within four months without lingering on interlocutory stages. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

## JUDGMENT & REASONING

The legal proceedings in Bajaj Auto Ltd. v. TVS Motor Company Ltd. (CS (OS) No. 890 of 2008) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Patents Act, 1970, particularly Section 108 Patents Act. Directed trial courts to hear patent infringement suits on a day-to-day basis and resolve matters within four months without lingering on interlocutory stages.

## OPERATIVE ORDER

**ORDER:** Decided